IN THE UNITED STATES DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION

REINALDO J. AGUIAR MARCANO,
Plaintiff, Pro Se,

v.

G. TROY PICKETT, et al.,
Defendants.

CIVIL ACTION NO. _____

United States Courts
Southern District of Texas
FILED
OCT - 7 2026
Nathan Ochsner, Clerk of Court

PLAINTIFF'S EMERGENCY *EX PARTE* APPLICATION FOR A TEMPORARY RESTRAINING ORDER AND PRELIMINARY INJUNCTION

I. INTRODUCTION

1. Pursuant to Federal Rule of Civil Procedure 65, Plaintiff Reinaldo J. Aguiar Marcano respectfully moves this Court for an emergency Temporary Restraining Order (TRO) and Preliminary Injunction to enjoin Defendant Sheriff Eric Fagan (and his deputies or agents) from executing a void, unconstitutional civil arrest warrant (Capias) issued by the 387th District Court of Fort Bend County, Texas.

2. Immediate injunctive relief is required because Plaintiff is currently facing an imminent, unconstitutional deprivation of physical liberty and an ongoing deprivation of fundamental parental association based on a warrant that is demonstrably void for lack of personal service. This emergency is severely escalated by a mandatory, in-person hearing set for **November 5, 2026**, which creates a direct, unconstitutional dilemma designed to either execute Plaintiff's immediate arrest or force a default judgment seizing his home.

II. STANDARD FOR INJUNCTIVE RELIEF

3. A party seeking a TRO must establish: (1) a substantial likelihood of success on the merits; (2) a substantial threat of irreparable harm; (3) that the balance of hardships weighs in their favor; and (4) that the issuance of the injunction will not disserve the public interest. *Winter v. Nat. Res. Dev. Council, Inc.*, 555 U.S. 7, 20 (2008).

III. ARGUMENT

A. Substantial Likelihood of Success on the Merits

4. Plaintiff is virtually certain to succeed on his Fourteenth Amendment Due Process claims. The state-court docket itself proves that the underlying October 15, 2025 Temporary Orders—upon which the Capias rests—were returned unserved by the USPS (Index #91). A civil arrest warrant issued without personal jurisdiction is a legal nullity.

5. This retaliatory pattern of service evasion is a matter of public record. On April 11, 2025, Judge Richard Bell signed a Temporary Restraining Order (Index #8) that was used to secret Plaintiff's minor child for 49 consecutive days, despite the clerk's docket (Index #9) certifying that the citation was returned completely "Unserved."

6. Furthermore, the Capias was signed on May 15, 2026, during an active, mandatory jurisdictional stay under Texas Rule of Civil Procedure 18a(g) triggered by a pending motion to recuse, rendering the judicial act void *ab initio*.

B. Immediate and Irreparable Harm

7. Plaintiff is currently suffering severe, daily irreparable harm that cannot be compensated by monetary damages. He is subjected to a constant threat of unconstitutional physical incarceration under a void Capias that has remained live in the state registry for exactly 144 consecutive days since its signing on May 15, 2026, and 133 days since its physical issuance

on May 26, 2026, creating an ongoing risk of immediate, traumatizing roadside arrest.

8. This harm has become acute and imminent. On October 6, 2026, Defendants Pickett and Espina filed a "Motion to Modify Temporary Orders" and issued a "Notice of Hearing" ordering Plaintiff's physical, in-person appearance in the trial court on **November 5, 2026, at 9:00 AM** to defend against the permanent seizure of his residence. This setting represents an unconstitutional, coercive dilemma: if Plaintiff appears physically, he will be immediately arrested in open court under the void Capias; if he does not appear, the court will enter a default judgment permanently depriving him of his home and his parental rights.

9. As documented in Defendant Pickett's October 6, 2026 letter (Exhibit A to the Complaint), the void Capias is being explicitly leveraged as a coercive tool to extort Plaintiff's federally registered intellectual property and to physically bar him from his minor son. Loss of constitutional liberty and parental association constitutes irreparable harm as a matter of law.

C. Balance of Equities and Public Interest

10. The equities heavily favor Plaintiff. Enjoining the execution of a void, unserved warrant imposes zero legitimate burden on the state, while failing to enjoin it subjects Plaintiff to false imprisonment.

11. It is always in the public interest to prevent the violation of constitutional rights and to stop the weaponization of the judicial apparatus for private extortion under color of law.

IV. CONCLUSION

WHEREFORE, Plaintiff respectfully requests that the Court immediately issue a Temporary Restraining Order enjoining Defendant Sheriff Eric Fagan from enforcing or executing the void Capias issued in Cause No. 25-DCV-328122, pending a full hearing on the merits of Plaintiff's Section 1983 Complaint.

Respectfully submitted,

Reinaldo Aguiar , Oct 6 2026

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PLAINTIFF'S CERTIFICATION CONCERNING NOTICE UNDER FED. R. CIV. P. 65(b)(2)

Pursuant to Federal Rule of Civil Procedure 65(b)(2), I, Reinaldo J. Aguiar Marcano, Plaintiff proceeding pro se, hereby certify to this Court the specific reasons why an emergency, *ex parte* Temporary Restraining Order must be issued without prior notice to Defendants:

1. **Imminent Threat of Arrest and Confinement:** Defendants G. Troy Pickett and Gloria Espina actively maintain a void, unserved civil arrest warrant (Capias) against me. Sheriff Eric Fagan and his deputies are authorized to execute this warrant upon sight.

2. **Risk of Evaporation of Relief:** Providing Defendants G. Troy Pickett or Sheriff Eric Fagan with advance notice of this federal filing before the Court can review the merits of this Application creates an imminent, catastrophic risk. Upon receiving notice, Defendants will immediately coordinate to execute the Capias and physically incarcerate me, thereby mooting and defeating the very constitutional protections, due process review, and injunctive relief I am seeking from this Court before this Court has the opportunity to rule. This risk is now acute, as Defendants have formally set a mandatory in-court hearing for November 5, 2026.

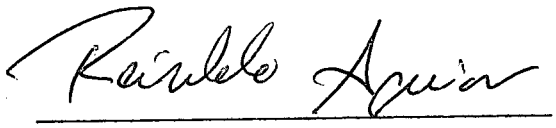
3. **No Prejudice to Defendants:** Issuing the TRO *ex parte* to maintain the status quo and protect Plaintiff's physical liberty and parental rights imposes zero legitimate burden or prejudice on Defendants. Defendants have maintained this Capias live in the state registry for exactly 144 consecutive days without enforcing it, utilizing it solely as a coercive tool to compel property and financial concessions. Because Defendants have had numerous opportunities to execute the warrant but have chosen not to do so, enjoining its enforcement pending an adversarial hearing poses zero prejudice to any

legitimate state or private interest, and a full Preliminary Injunction hearing will be scheduled shortly thereafter.

I declare under penalty of perjury under the laws of the United States of America, pursuant to 28 U.S.C. § 1746, that the foregoing is true and correct.

Executed on October 6, 2026.

Respectfully submitted,



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